



Genocide in Gaza

In December 2024 Amnesty International UK published a [report](#) finding that Israel was committing genocide in Gaza. At the end of November 2025 Amnesty International published a [legal analysis](#) setting out that despite the so-called ceasefire agreement in place since 3 October 2025, the genocide continues. The UN Office of Coordination of Humanitarian Affairs (OCHA) [reported](#) on 14 January 2026 that 449 Palestinians had been killed since the so-called ceasefire began, including at least 100 children according to [UNICEF](#). OCHA's 21 January 2026 [update](#) sets out that 81% of all structures have been destroyed or damaged, most of the population remains displaced and at least 77% are facing crisis or worse levels of acute food insecurity. By continuing to severely restrict the entry of supplies and the restoration of services essential for the survival of the civilian population – including nutritious food, medical supplies and electricity – as well as stringently limiting medical evacuations, Israel is deliberately inflicting conditions of life calculated to bring about the physical destruction of Palestinians, an act prohibited under the Genocide Convention.

All state parties to the Genocide Convention have an obligation to prevent and punish genocide, but despite widespread international consensus that a genocide has been committed, substantial available evidence, an interim order from the International Court of Justice warning of plausible risk and a UN Independent Commission finding of genocide, the UK government has continued to refuse to even accept there is *risk* of genocide having been committed. Once state parties accept a serious risk, they are legally obliged to take action to prevent that risk coming to pass.

Amnesty International UK urges Parliamentarians to press the UK government to explain how it is possible that it does not accept even the risk of genocide in Gaza; what actions it has taken to prevent genocide in Gaza; and what actions it will take to punish it.

If MPs can say just three things in this debate, we urge you to:

- Question the UK Government on what evidence it would require to accept the risk of genocide and ask why neither the International Court of Justice interim ruling warning of plausible risk or the UN Commission of Inquiry (the COI)¹ [finding](#) that Israel had committed genocide, was enough to trigger its acceptance of risk. The COI stated in its September 2025 report that States had been on notice of the serious risk of genocide in Gaza since the ICJ issued its provisional measures to prevent genocide in January 2024 – what is the UK's response to this independent UN body?
- Question the UK Government on its record of acting to prevent and punish genocide in other contexts. In its intervention in the ICJ case *The Gambia vs Myanmar*, the UK argued that acts against children and forced displacement are crucial indicators of intent to commit Genocide. Given that as of October 2025 a staggering 64,000 children had been killed or injured in Gaza (according to [UNICEF](#)); as of 13 January 2026 more than [100 children](#) had been killed since the so-called ceasefire; and at times [90% of the population were displaced](#), why does the UK not see evidence of intent to commit Genocide by Israel and why did the UK not intervene in the ICJ case *South Africa vs Israel*?
- Question the government on why it has not taken action to prevent Genocide in Gaza in line with actions in response to other state violations elsewhere, for example a full arms embargo; a suspension of trade and military assistance; support and pressure for multilateral targeted sanctions; or funding and support, at the domestic and international level, for criminal

¹ UN Independent International Commission of Inquiry of the Occupied Palestinian Territory, including East Jerusalem and Israel.

prosecutions of suspected perpetrators. These are all actions the UK has taken in other circumstances.

Evidence of Genocide in Gaza

In December 2024 Amnesty International [found](#) that Israel had committed at least three of the five prohibited acts under the Genocide Convention: (a) Killing members of the group; (b) Causing serious bodily or mental harm to members of the group; (c) Deliberately inflicting on the group conditions of life calculated to bring about its physical destruction in whole or in part. For example:

- Israel's total siege on Gaza after 7 October 2023, which included cutting off electricity, water and fuel, and maintaining an unlawful blockade that prevented meaningful humanitarian access, obstructed delivery of life-saving goods, and compounded conditions of extreme deprivation.
- Mutually reinforcing patterns of damaging and destroying life-sustaining infrastructure; mass forced displacement of almost the entire population through sweeping and arbitrary evacuation orders; denial and obstruction of essential humanitarian services and supplies.
- Israel's use of starvation of civilians as a weapon of war, which by August 2025 had [led to famine](#).
- Deliberately indiscriminate attacks: Amnesty International reviewed 15 Israeli airstrikes between 7 October 2023 and 20 April 2024 which killed at least 334 civilians — including 141 children — and wounded hundreds of others. Amnesty found no evidence that any of these attacks were directed at a military objective. According to [OCHA](#), by January 2026 71,551 Palestinians had been killed, including 570 aid workers, 1700 health workers and 255 journalists.

To meet the threshold of genocide, the Convention sets out that prohibited acts must be taken with the intent to destroy, in whole or in part, the protected group. Amnesty International's analysis of the evidence as a whole has found that intent. The evidence for this includes a range of things, including the context of the decade's old unlawful occupation; the overall pattern of Israel's conduct, including repeated direct attacks on civilians and deliberately indiscriminate strikes; unprecedented destruction of structures and infrastructure; and continuous refusal to allow adequate aid into Gaza.

Evidence of continuing Genocide in Gaza

- In November 2025 Amnesty International [concluded](#) that Israeli authorities are still committing genocide against Palestinians in the occupied Gaza Strip through deliberately inflicting conditions of life calculated to bring about Palestinians' physical destruction, including through the sustained denial of food, medical supplies, electricity, shelter materials and essential services.
- Amnesty International documented, as of November 2025:
 - Israeli authorities continuing to severely restrict the entry of supplies and the restoration of services essential for the survival of the civilian population, including nutritious food, medical supplies and electricity, while also stringently limiting medical evacuations, which exacerbates deaths and preventable suffering.
 - Israel continuing to block the entry of materials necessary to repair or rebuild civilian infrastructure, including housing, water, sanitation and sewage systems, contributing directly to life-threatening living conditions.
- In December 2025 Amnesty International [found](#) that the winter flooding in Gaza, which caused civilian deaths, was the foreseeable consequence of Israel's ongoing genocide and deliberate policy of blocking the entry of shelter and repair materials. UN agencies, including UNRWA, had sufficient shelter and winterisation supplies for over one million people positioned outside Gaza, but Israeli authorities were refusing to allow them in, despite predictable and fatal consequences.

"I still cannot digest the thought that we survived the bombardment only for my children to be crushed as a result of the storm." — Mohammed Nassar, father of Lina and Ghazi, whose home collapsed on 12 December

“Because we knew about the upcoming storm, we tried to secure the tents as much as possible but how can you secure a tent? ... the worst thing for us is we don’t know where to go next; there is no future for us; no horizon...” — Shadi Hannouna on the deaths of his brothers Khalil and Khader

Assessment of risk of and action to prevent Genocide

It is accepted that in order to prevent genocide, States must take action before it is proven that genocide has taken place. The International Court of Justice (ICJ) has established, in *Bosnia and Herzegovina v. Serbia and Montenegro*², that the threshold for taking action to prevent is when there is a "serious risk" that Genocide might take place.

In regard to Israel’s Genocide against Palestinians in Gaza, in September 2024 government lawyers stated³ that *“The FCDO’s assessment and the Government’s conclusion [is] ... that there was no serious risk of genocide occurring.”* As far as Amnesty International UK is aware, this assessment has not changed.

This assessment however is incoherent and not credible, given the ICJ had issued its interim ruling in January 2024 warning of a plausible risk that Palestinians in Gaza would experience Genocide. The ICJ issued [provisional measures](#) directing Israel to take a number of steps in order to avoid subjecting Palestinians in Gaza to Genocide – Israel ignored them all. By September 2024 – and even more so now – it was patently obvious that Israel had not (for example) taken measures to *“prevent the a) killing of Palestinians b) causing of serious bodily or mental harm against them”* or *“ensure provision of aid to address adverse conditions of life”*.

Given the ICJ had directed Israel to do a number of things in order to protect Palestinians from the very real risk of Genocide, and Israel ignored them, how is it possible that nine months later the UK government assessed there was not – at the very least – a serious risk of Israel committing Genocide in Gaza?

In September 2025 the COI [stated](#) unequivocally that *“Israel has committed genocide against Palestinians in the Gaza strip”*. The COI emphasised that *“since at least 26 January 2024, when the ICJ ordered its first provisional measures, all States Parties to the Genocide Convention... have been on notice of a serious risk that genocide was being or would be committed. As such, the duty to prevent genocide was triggered [then]”*. However, the UK government has still not accepted that risk and has not taken sufficient steps to prevent or punish Israel’s genocide in Gaza.

Has the UK done all it could to prevent Genocide in Gaza?

In May 2025 the Minister for the Middle East [said](#) *“We have not waited...for the determination of international courts, to take action. Let us not forget what we have done in relation to UNRWA, on arms suspension, on sanctions on Israeli settlers, or through our convening role on the United Nations Security Council.”* However, the Government’s actions have not included a full arms embargo, a suspension of trade and military assistance, support and pressure for multilateral targeted sanctions, or funding and support for criminal prosecutions at the domestic and international level of suspected perpetrators, all actions the UK has taken in other circumstances (see below for details). The UK has not done all it can to prevent Israel’s Genocide.

² Application of the Convention on the Prevention and Punishment of the Crime of Genocide (*Bosnia and Herzegovina v. Serbia and Montenegro*), Judgment, I.C.J. Reports 2007, p. 43, at §431

³ During the High Court hearing of *Al-Haq v Secretary of State for Business and Trade*

UK government action on Genocide elsewhere

On 11 November 2019, The Gambia initiated proceedings against Myanmar at the International Court of Justice for alleged violations of the Genocide Convention targeting the Rohingya population. On 15 November 2023, the UK—alongside Canada, Denmark, France, Germany, and the Netherlands—submitted a joint declaration to intervene in this case. The intervention aimed to clarify the interpretation of key provisions of the Genocide Convention (Articles I, II, IV, V, and VI), motivated by a “common interest in the accomplishment of the high purposes of the Convention.”

In its submission, the UK advanced a broad interpretation of Article II, which defines genocidal acts. The UK emphasized that genocide is not limited to killings, explicitly recognizing acts of sexual and gender-based violence, torture, forced displacement, and other forms of serious bodily or mental harm as constitutive of genocide. Importantly, the UK argued for a lower threshold of “serious bodily or mental harm” when the victims are children, highlighting their heightened vulnerabilities—citing deprivation of food as a particularly harmful act against children. Furthermore, the UK contended that forced displacement itself can amount to an underlying act of genocide.

Regarding genocidal intent, the UK stressed that acts against children and forced displacement are crucial indicators of intent. It emphasized the probative value of United Nations reports (such as those from Commissions of Inquiry), alongside the use of circumstantial evidence assessed under a “reasonableness criterion.” In sum, the UK advocated for a wide-ranging and purposive understanding of both genocidal acts and intent.

Given that over 64,000 children have been killed or injured in Gaza (according to [UNICEF](#)) and that [90% of the population has been displaced](#), these same legal arguments and evidentiary standards are clearly applicable to the ongoing ICJ case against Israel’s actions. Yet, strikingly, the UK has chosen not to intervene in that case. The UK [dismissed](#) the intervention as “not helpful in the goal of achieving a sustainable ceasefire” and labelled it “wrong and provocative.”

Other actions taken elsewhere:

- The UK government has full [arms embargoes](#) and trade sanctions in place against a number of countries.
- The UK government restricts engagement and defence cooperation with countries in response to reports of human rights violations, for example [Georgia's](#) excessive use of force against protestors.
- The UK government has contributed £11.5m funding to support [Ukraine's](#) war crimes investigations.
- The UK government responds to UN International Independent Commission of Inquiry reports on other contexts, for example [Ukraine](#). As far as Amnesty International is aware, there has been no official response to the UN COI finding that Israel has committed Genocide.